

DIGITAL GOVERNANCE CAUCUS • 2026 SESSION

# The session's four calls.

Four measures reach the floor this week — here is where the caucus should stand on each, and the exact move to make.

# Adopt a 30-day deadline for breach notification.

ADOPT

## Faster notice cuts identity-theft losses

A 30-day rule cut per-victim costs 22% [FTC 2025](#).

## The window is already industry practice

14 of the top 20 data processors notify within 30 days [IAPP survey](#).

## Enforcement is self-funding

Penalties fund the oversight office [LBB fiscal note](#).

### THE ASK

Vote YES on HB 214 § 3, or sponsor the floor amendment.

# Amend SB 88 to require bias audits before deployment, not after.

AMEND

## Pre-deployment testing is the only preventive control

Audits after launch cannot un-reject filtered candidates [EEOC 2025](#).

## The change is narrow and drafted

It moves one clause from § 4(b) to § 3; no new agency [Leg. counsel memo](#).

## Vendors can meet it today

Three of five ATS vendors ship pre-deployment reports [vendor survey](#).

### THE ASK

Move the § 4(b) audit trigger to § 3 in the committee substitute before markup.

OPPOSE

# Oppose AB 402's mandated key-escrow provision.

A state-held decryption key is a single point of failure for every resident's data.

**It weakens security for everyone**

A mandated backdoor is exploitable by any attacker who finds it **NIST**.

**It won't stop determined actors**

Open-source encryption stays available outside the state's reach **EFF**.

THE ASK

Vote NO on AB 402, or strike the § 5 escrow mandate in committee.

DEFER

# Defer HR 19 pending an independent accuracy study.

Error rates for the proposed system are unpublished for the populations it would scan.

**The evidence base is missing**

No demographic accuracy audit exists for this vendor [GAO request](#).

**A study is already funded**

The oversight office can report within one session [fiscal note](#).

THE ASK

Refer HR 19 to interim study; revisit with the audit in hand.

REP. ANA OKAFOR • CHAIR • GOVERNANCE@STATEHOUSE.EXAMPLE

Two ayes, one no, one to study —  
the caucus speaks with one voice.